# Agreement on Authorship and Rights in the Work "Playground Life"

This Agreement (the "**Agreement**") is made on **____ _____ 20____**, in Prishtina, between:

**(1) Erion Beka**, of **Str. Zekeria Cana, House No. 4, Laxha e Profesoreve, Prishtina, Republic of Kosovo** (the "**Author**"); and

**(2)** the natural persons whose names appear in the signature blocks at the end of this document (the "**Confirming Parties**").

The Author and the Confirming Parties are referred to together as the "**Parties**" and each as a "**Party**".

## RECITALS AND SPIRIT OF THE DOCUMENT

This Agreement is entered into in good faith, in a spirit of mutual trust, mutual respect and preservation of the good relations between the persons who collaborated at the **pristina.innovate.healthcare** hackathon. Its purpose is not to create conflict, but to clarify, fairly and courteously, what all the Parties already know about the rights in the Work, so that no one is left uncertain and the friendship and cooperation of the Parties remain intact. This is a document of confirmation and gratitude, not a claim.

**Whereas:**

**(A)** the Parties met and worked together as a group at the **pristina.innovate.healthcare** hackathon (04-06 April 2025, Prishtina), organised by **HealthCare Futurists GmbH**;

**(B)** during that event the group shared ideas and prepared a presentation; on stage, on behalf of the group, the presentation was delivered by one of the Confirming Parties, who spoke before the audience;

**(C)** at that event only slides and a few illustrative images were presented, with no application, source code or working version of the Work being submitted;

**(D)** development of the Work in its current form began after that event, around April 2026, and the Work therefore does not constitute a submission to the hackathon;

**(E)** the shared participation brought a valuable experience, recognition and a prize, which the Parties shared and value (see Article 12);

**(F)** the Parties wish to preserve good relations, to respect each person's effort and to avoid any possible misunderstanding in relation to the rights in the Work;

**(G)** this document is intended to record clearly, fairly and courteously, what the Parties already know: that the rights in the Work belong to the Author; and

**(H)** each Party enters into this Agreement of its own free will, having had a reasonable opportunity to obtain independent legal advice.

**The Parties have agreed as follows:**

## Article 1 - DEFINITIONS AND INTERPRETATION

1.1 For the purposes of this Agreement, the following terms have the meanings below:

- **(a) "Law" - Law No. 08/L-205 on Copyright and Related Rights** (Official Gazette of the Republic of Kosovo No. 22/2023, 12 October 2023; in force 27 October 2023), which repealed Law No. 04/L-065,

Law No. 05/L-047 and Law No. 06/L-120.

- **(b) "Obligations Law"** - **Law No. 04/L-077 on Obligational Relationships** (Official Gazette No. 16/2012, 19 June 2012).
- **(c) "Work"** - the software work known as "Playground Life" and all of its component elements, in any form or medium, including: the source and object code and software components; the architecture, models, diagrams and technical documentation; the databases, schema and configurations; the user interfaces (UI/UX), graphic design, icons, logos and visual style; the texts, labels, content and manuals; the images, sounds, animations and digital assets; the algorithms, business logic and embedded know-how; the presentation materials and images prepared for the hackathon, to the extent they relate to the Work; and any subsequent version, variant, copy or update of them.
- **(d) "Rights"** - copyright, moral rights, the exclusive economic rights under Article 23 of the Law, rights to remuneration, related rights where applicable, and any other intellectual property right in any jurisdiction.
- **(e) "Creative Contribution"** - any creative, original and personal effort that directly contributes to the creation of the Work, within the meaning of Articles 7 and 9 of the Law.
- **(f) "Confidential Information"** - the content of this Agreement and any non-public information relating to the Work.
- **(g) "Participation Benefit"** - the experience, recognition and any material reward received from the shared participation in the hackathon, including the share of the prize referred to in Article 12.

1.2 The headings of Articles are for convenience only and do not affect interpretation. Terms in the singular include the plural and vice versa. References to laws refer to the laws in force, including any amendment or replacement of them.

## Article 2 - SUBJECT MATTER

2.1 The subject matter of this Agreement is the clear determination of the state of the rights in the Work between the Parties.

2.2 The Agreement regulates, in particular: (a) confirmation of the Author's authorship; (b) confirmation that the Confirming Parties have not made a Creative Contribution; (c) the transfer to the Author of any right that might belong to them; (d) the waiver of any claim; and (e) the related obligations of the Parties.

## Article 3 - PURPOSE

3.1 The purpose of the Parties is to confirm and secure, fully and irrevocably, that the rights in the Work belong to the Author, and to prevent any possible ambiguity or dispute in relation to them.

3.2 A secondary purpose of the Parties is to preserve the good relations and friendship between them, and to acknowledge with respect each person's participation in the shared experience.

## Article 4 - PRINCIPLES AND SPIRIT OF THE AGREEMENT

4.1 The Parties enter into and perform this Agreement in accordance with the principle of good faith and fair dealing (Article 4 of the Obligations Law).

4.2 The Parties shall act with honesty, transparency and mutual respect, and shall cooperate in good faith to give full effect to this Agreement.

4.3 This Agreement is interpreted in a spirit of fairness and respect, having regard to the fact that the Parties value each person's effort, regardless of the place that effort occupies in law.

4.4 In case of ambiguity, the provisions of this Agreement shall be interpreted so as to give the Author the broadest scope of transfer permitted by the Law.

## Article 5 - BACKGROUND AND ROLES

5.1 The Parties confirm that they met and cooperated as a group at the **pristina.innovate.healthcare** hackathon, held in Prishtina on 04-06 April 2025 and organised by HealthCare Futurists GmbH.

5.2 During that event the group shared thoughts, discussed ideas and prepared a presentation. On stage, on behalf of the group, the presentation was delivered by one of the Confirming Parties, who spoke before the audience. That participation, and the courage to represent the group, are sincerely appreciated by all Parties.

5.3 The shared participation in that event brought a valuable experience, recognition and a prize. The Parties value them and consider them a fine part of their cooperation (see Article 12).

5.4 Notwithstanding the good spirit and the shared experience, the Parties are aware and agree that the real work of creating and developing the Work was carried out solely by the Author, as described in Article 6, and that, beyond the participation and presentation described in clauses 5.2 and 5.3, the Confirming Parties performed no other tasks in relation to the Work, as described in Article 7.

5.5 This Article is intended to reflect honestly the history of the cooperation, while preserving the respect and dignity of all Parties.

## Article 6 - THE AUTHOR'S CONTRIBUTION AND AUTHORSHIP

6.1 The Author has created by himself, independently, originally and personally, the software work and its component elements known as **"Playground Life"** (the Work), having invested in it his time, knowledge, skill, creative effort and resources.

6.2 The creation of the Work by the Author includes, without limitation: the conception and architecture of the system; the writing of all the source code; the design of the interfaces and the visual style; the structuring of the data; the testing and fixing of defects; and the preparation of the related documentation and materials.

6.3 The Author is the natural person who created the Work. Within the meaning of Articles 7 and 15 of the Law, the copyright in the Work belongs to him and arises automatically upon creation of the Work, without any need for registration or other formality.

6.4 The Parties confirm that the Work is the product of the sole, independent and personal creative effort of the Author. Under Article 9 of the Law, a work of joint authorship requires a joint creative effort; the Parties agree that no such effort has existed in relation to the Work.

6.5 The Author retains the full right to continue the development, exploitation and commercialisation of the Work, and the Parties support this with goodwill.

## Article 7 - ABSENCE OF CREATIVE CONTRIBUTION BY THE CONFIRMING PARTIES

7.1 Each Confirming Party confirms, honestly and of its own free will, that, beyond the participation in the group and the on-stage presentation described in Article 5, it has performed no task and has made no Creative Contribution in relation to the Work.

7.2 Without limitation, the Confirming Parties confirm that they have not taken part in: the conception and architecture of the Work; the writing or editing of the source code; the graphic or interface design; the

structuring of the data; the technical testing; or the preparation of the technical documentation.

7.3 For the avoidance of doubt, the following do not constitute a Creative Contribution, within the meaning of the Law: participation in a group or a hackathon; the exchange of ideas, suggestions or comments; attendance at meetings and communications; the presentation of materials prepared by the Author; the testing or use of the Work; and logistical, administrative, financial or organisational activities.

7.4 Each Confirming Party confirms that it has not been engaged by the Author and has not entered into any employment, commission or contractual relationship with him in relation to the Work.

7.5 This confirmation does not constitute criticism of any Party; it serves only to establish accurately, without misunderstanding, what the Parties already know.

## Article 8 - TRANSFER OF RIGHTS

8.1 For the avoidance of any doubt, each Confirming Party, if and to the extent that it holds or may be deemed to hold any right in the Work, **assigns to the Author** by this Agreement, fully, irrevocably and unconditionally, all of its right, title and interest in the Work, with effect from the creation of the Work.

8.2 The assignment covers all economic rights under Article 23 of the Law, the rights to remuneration, and any claim, demand or remedy, present or future, in relation to the Work. Consequently, the Author is the sole owner of the assigned rights (Article 37 of the Law); this is a transfer of ownership and not a licence.

8.3 Within the meaning of Article 38 of the Law, the assignment is specified as follows:

- **(a) nature and scope of exploitation**: all forms of exploitation known as at the date of this Agreement, as well as the right to authorise or prohibit exploitation by third parties;
- **(b) duration**: the entire term of protection under the Law (the life of the author plus 70 years, Article 65 of the Law), and in any event the longest term permitted;
- **(c) territory**: the entire territory of the world;
- **(d) remuneration**: as set out in Article 12;
- **(e) terms and time of payment**: not applicable.

8.4 The Parties have intentionally designated the broadest scope permitted and agree that any ambiguity shall be construed in favour of the Author, in accordance with Article 38 of the Law.

8.5 The assignment is limited to the existing Work identified in this document. It does not cover future works not yet created (Article 39 of the Law) or uses wholly unknown at the date of the Agreement; any method of exploitation known at that date, and any method deriving from it, is included in the assignment.

8.6 If and to the extent that a Confirming Party is deemed a co-author, it waives the exploitation of its share and, by this declaration, its share passes to the Author as the other author (Article 9(4) of the Law).

8.7 The assignment includes any right a Confirming Party may have in respect of versions, variants and updates of the Work that derive from the existing Work.

## Article 9 - WAIVER AND NON-CHALLENGE

9.1 Each Confirming Party irrevocably waives any claim or demand it has or might have against the Author in relation to the Work, including claims of authorship, co-authorship, ownership, remuneration or compensation.

9.2 Each Confirming Party undertakes not to bring proceedings, not to assist others in bringing proceedings, and not to challenge the Author's claims of ownership of the Work.

9.3 The waiver and non-challenge are made in a spirit of preserving good relations and legal certainty for all.

## Article 10 - MORAL RIGHTS

10.1 The Parties acknowledge that, under Article 22(1) of the Law, moral rights cannot be transferred or licensed, and this Agreement does not purport to transfer them.

10.2 To the extent that a Confirming Party holds or claims any moral right in the Work, it waives, to the fullest extent permitted by the Law, any such claim and gives its consent, for the purposes of Article 22(2) of the Law, that the Author may use, reproduce, modify, distribute and exploit the Work. The Parties note that the right of regret (Article 21) is protected only during the author's life and does not apply to computer programs.

10.3 The Author's moral rights - the right of first publication (Article 18), the right of paternity (Article 19) and the right of integrity (Article 20) - remain his and are protected without limitation in time (Article 64 of the Law).

## Article 11 - WARRANTIES

11.1 Each Confirming Party warrants that: (a) the facts it confirms in this Agreement are true to the best of its knowledge; (b) if it contributes anything, that contribution is its original work or it holds all rights necessary to assign it; (c) it has not previously assigned, licensed or encumbered any right purported to be assigned here; (d) it has disclosed in writing any third-party or AI-generated material related to the Work; (e) it has full capacity and authority to enter into this Agreement; and (f) it is not under any employment, commission or other obligation that would prevent it or that would pass rights in the Work to a third party.

11.2 The warranties in this Article survive signing.

## Article 12 - REMUNERATION AND BENEFIT RECEIVED

12.1 As consideration for the confirmations, assignment, waiver and obligations in this Agreement, the Author gives each Confirming Party the acknowledgement recorded in its signature, if any, together with a symbolic sum of one (1) euro, receipt of which each Confirming Party acknowledges.

12.2 The Parties note, with sincere gratitude, that the fruit of their cooperation has already been shared in full: the experience, the recognition and the prize that the team won and shared together at the hackathon, including each Confirming Party's share (approximately USD 400). That benefit, together with the recognition and shared experience, is regarded by the Parties as valuable and sufficient, and constitutes the full and final consideration for the confirmations, assignment and waiver under this Agreement. The Parties accept this with gratitude and without further claims.

12.3 The Parties express their gratitude for the shared experience and for the fact that each represented the group in their own way. This document does not seek to diminish the value of that experience, but only to clarify the rights in the Work.

12.4 Apart from the symbolic consideration in clause 12.1 and the Participation Benefit already received, there is no other obligation of payment, fee or compensation from the Author towards the Confirming Parties in relation to the Work.

12.5 The Parties note that the Work is a computer program; under Article 44(2) of the Law, Articles 40(4), 41, 42 and 43 do not apply to computer programs. The remuneration set in this Article is therefore final.

## Article 13 - CONFIDENTIALITY

13.1 Each Party shall keep the Confidential Information confidential and shall not disclose it to third parties without the Author's prior written consent.

13.2 Disclosure or uploading of the Confidential Information to an external, third-party service for artificial intelligence, cloud computing or data processing, not under the exclusive control of the disclosing Party itself, constitutes disclosure to a third party within the meaning of clause 13.1 and requires the Author's prior written consent.

13.3 Clause 13.2 does not restrict disclosure: (a) to the Party's own legal, tax or professional advisers, who are under a duty of confidentiality; (b) where required by law, by a court or a competent authority; or (c) of information that becomes public without breach of this Agreement. Nothing in this Article limits the Parties' rights over their own personal data under Law No. 06/L-082 on the Protection of Personal Data.

13.4 A breach of this Article shall not affect the validity or continuing effect of the confirmations, assignment, waiver or obligations in this Agreement. The remedy for such a breach is compensation for proven damage, and not the loss of any right under this Agreement.

13.5 The Parties shall not publicly disparage one another in relation to the Work; this does not restrict the right to state the truth in legal proceedings.

## Article 14 - INDEMNITY

14.1 Each Confirming Party shall indemnify and hold harmless the Author against any loss, damage, cost or third-party claim arising from a breach of the warranties in Article 11 or from any claim by that Party to rights in the Work contrary to this Agreement.

14.2 This obligation survives termination or expiry of this Agreement.

## Article 15 - FURTHER ASSURANCES

15.1 Each Confirming Party shall, at the Author's request and expense, promptly sign any further document and take any reasonable step necessary to give full effect to this Agreement and to evidence, register or notarise the assignment of any right.

## Article 16 - FREE CONSENT AND INDEPENDENT ADVICE

16.1 Each Party confirms that it has read and understood this Agreement and signs it freely and of its own free will.

16.2 Each Confirming Party confirms that it has had a reasonable opportunity to obtain independent legal advice before signing.

16.3 Each Party accepts that it has not relied on any statement or promise outside this Agreement and that this Agreement is entered into without threat (Article 45 of the Obligations Law), essential error (Article 46), fraud (Article 49) or undue influence.

## Article 17 - RELATIONSHIP OF THE PARTIES

Nothing in this Agreement creates any partnership, joint venture, agency, employment or fiduciary relationship between the Parties. This Agreement does not affect the friendship or personal relations of the Parties.

## Article 18 - GOVERNING LAW AND JURISDICTION

18.1 This Agreement is governed by the laws of the Republic of Kosovo.

18.2 The Parties submit to the exclusive jurisdiction of the competent courts in Prishtina, Republic of Kosovo.

18.3 Matters not regulated by the Law are governed by the Obligations Law (Article 40(7) of the Law).

## Article 19 - GENERAL PROVISIONS

19.1 **Entire agreement.** This Agreement constitutes the entire agreement between the Parties on its subject matter and supersedes any prior understanding.

19.2 **Severability.** If any provision is held invalid or unenforceable, the remainder shall remain in force and the affected provision shall be replaced by a provision as similar in effect as possible, so as to give the Author the fullest protection permitted by the Law.

19.3 **Third parties.** No person other than the Parties and the Author's successors or assignees has the right to enforce this Agreement.

19.4 **Counterparts and electronic signature.** This Agreement may be signed in separate counterparts, each of which is an original. An electronic or scanned signature has the same effect as a handwritten signature.

19.5 **Notices.** Notices are sent to the Parties at the addresses stated in this Agreement or at their last known address. A notice by email is deemed received on the day of sending.

19.6 **Survival.** The provisions on confidentiality, warranties, indemnity, further assurances and governing law survive termination or expiry of this Agreement.

19.7 **Language.** The Albanian version of this Agreement is the controlling language. This English text is provided for reference only.

## Article 20 - SIGNATURES, ACKNOWLEDGEMENT AND EVIDENCE

20.1 The Parties may certify or legalise their signatures before a notary under Law No. 06/L-010 on Notary; a notarised deed has strong evidentiary value and is directly enforceable (Article 43 of that law). Notarisation is optional.

20.2 If a Party signs outside Kosovo, its signature may be accompanied by an apostille under the Hague Convention.

20.3 The Parties express their gratitude for the shared experience during the hackathon and wish continued success to the Work and to each of them on their own path.

20.4 This document is confirmed in a spirit of mutual understanding and respect that characterises the cooperation of the Parties.

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## SIGNATURES

Each Party signs only its own block and, by signing, confirms that it has read, understood and accepts the contents of this Agreement, and that the confirmations and the transfer of rights are made freely and in a spirit of understanding.

### Confirming Party 1

| Field | |
|---|---|
| Full legal name | _____ |
| Address | _____ |
| Signature | _____ |
| Date and place | _____ |
| Notarial certification (optional) | _____ |

### Confirming Party 2

| Field | |
|---|---|
| Full legal name | _____ |
| Address | _____ |
| Signature | _____ |
| Date and place | _____ |
| Notarial certification (optional) | _____ |

### Confirming Party 3

| Field | |
|---|---|
| Full legal name | _____ |
| Address | _____ |
| Signature | _____ |
| Date and place | _____ |
| Notarial certification (optional) | _____ |

### Confirming Party 4

| Field | |
|---|---|
| Full legal name | _____ |
| Address | _____ |
| Signature | _____ |
| Date and place | _____ |

| | |
|---|---|
| Notarial certification (optional) | _____ |

## Author

| Field | |
|---|---|
| Full legal name | Erion Beka |
| Address | Str. Zekeria Cana, House No. 4, Laxha e Profesoreve, Prishtina, Republic of Kosovo |
| Signature | _____ |
| Date and place | _____ |
| Notarial certification (optional) | _____ |